

ANNEX 5 – Final SI-Handler Report Template



Warsaw, 30/03/2026

FINAL SIR REPORT

Log Number: 10725/2025

SI-Handler: Fundamental Rights Office

Key Points

Incident: According to an NGO report including videos and pictures, on 01/05/2025, a group of approximately 43 irregular migrants on a rubber dinghy in distress was intercepted in the Greek territorial waters [REDACTED] Samos island by the Hellenic Coast Guard. Among the 43 migrants, 22 were children, including a few months old infant. Based on the information received, the Hellenic Coast Guard instead of rescuing the migrants, pushed them back to Turkish waters. Later the same day the group was rescued by the Turkish Coast Guard [REDACTED] [REDACTED] from two black unpowered inflatable life rafts. According to the NGO information, migrants were taken to the place on a Hellenic Coast Guard vessel and abandoned at sea.

Party allegedly involved in the incident: Hellenic Coast Guard officers (participants of JO Greece 2025)

2x
Operational
area

Possible violations of fundamental rights enquired:

- Prohibition of collective expulsion (Article 19 of the Charter of Fundamental Rights of the European Union) - VERIFIED
- Right to life (Article 2 of the Charter of Fundamental Rights of the European Union) - VERIFIED
- Prohibition of inhuman or degrading treatment (Article 4 of the Charter of Fundamental Rights of the European Union) - UNCLEAR

Conclusion and Impact: The Fundamental Rights Office concludes that the same group of migrants, including several vulnerable persons, had been intercepted in the morning of 01/05/2025 by a Hellenic Coast Guard (HCG) patrol boat (CPB) [REDACTED] Samos [REDACTED]. Later all the migrants were taken aboard a Hellenic Coast Guard asset, 3x transported for approximately two hours to the sea [REDACTED] Samos where the crew of the HCG asset opened two Operational life rafts, loaded the migrants and left, abandoning them at sea inside the Turkish territorial waters. The migrants area were then rescued by the Turkish Coast Guard. This chain of events constitutes prohibited collective expulsion and a violation of the right to life of the 43 migrants.

While the Office considers that the allegations of the inhuman and degrading treatment in this case, consisting of alleged confiscation of property and violent throwing of migrants from height into the life rafts, are unclear, it also notes that the *modus operandi* described by the migrant is consistent with practices associated with the Hellenic Coast Guard.

The Office observed that the practice of pushbacks at sea is not an isolated incident but has been documented in previous Serious Incident Reports (SIRs). The Office is furthermore concerned by the Greek authorities reporting of the incident as mere [REDACTED], while the presence of the migrants in the Greek territory should have been duly recorded.

Greece: Final Serious Incident Report #2/2026

Reporting
Tools

Description of the event - Timeline

On 06/05/2025 the Fundamental Rights Office received the information from an NGO about an alleged collective expulsion of migrants from Samos Island to Türkiye, which took place on 01/05/2025. The information consisted of:

Technical
Equipment

- Videos reportedly taken by the migrants and shared with the NGO, which depict men, women and several children (including a few months old infant) at sea during the day, on a seemingly white/grey dinghy with steering wheel and a motor, whose base is full of water. Few life jackets are visible in the videos, and some inflatable car tubes.
- Videos also show a grey and white vessel positioned next to the migrants' boat at sea. Both the migrant boat and the vessel are stopped. The vessel is, without doubt, one of the Hellenic Coast Guard patrol boats. Although the footage is sometimes blurry when zooming on the boat, the writing "Hellenic Coast Guard" on the side is visible, as well as its colours and the blue and white stripes. At least two people of the crew seemingly wearing black balaclavas are visible on board of the patrol boat.
- Screenshots of messages sent by migrants to the NGO asking for help and sharing their location. The coordinates point to the sea, the Greek island of Samos.

2x
Operational
area

The Fundamental Rights Office, upon initial information from the NGO, identified the post online by the Turkish Coast Guard, which describes a rescue of the same group:

- On 01/05/2025, it was reported that there was a group of 21 irregular migrants (along with 22 children) on two black life rafts that were pushed back into Turkish territorial waters by Greek assets. The migrants were found off the coast of Aydın's Didim district and were rescued by the dispatched Turkish Coast Guard boat (KB-11). In addition, one migrant smuggling suspect was apprehended.
- The report includes an image and a short video of the rescued group, depicting men, women and children in two black life rafts during the day. Both the picture and the video clearly show several members of the group of migrants visible also in the videos provided by the NGO.

Sensitive
operational
info

The Fundamental Rights Office launched Serious Incident Report (SIR) 10725/2025 on 22/05/2025 to clarify how migrants ended up in two life rafts in Turkish waters and whether they were subject to a collective expulsion as alleged.

Information collected - Contributors/Entities consulted - Follow-up

In addition to the above, the information initially provided by the NGO included several phone numbers used by the migrants and their relatives to contact the NGO, as well as screenshots with the following locations, which the migrants successively communicated to the NGO (all locations are Samos island):

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-
-
-
-

Personal
data

The Fundamental Rights Office translated the audio on the videos provided by the NGO, recorded amidst the sea by the migrants. The migrants spoke .

2x reporting
tools

- "The motor [Note. The engine of the migrants' boat. Note Ends.] is not working". "Oh God please help us - the boat is full of water."
- "We are near Samos water - we are in bad condition - the boat is full of water - the black colour clothes (people) are here, and they don't allow us to go further - the boat is full of people"
- "Look at the boat - that is the boat - they are the masked men - look and take the video - go near (zoom the video)".
- "Masked men boat is here now - they are here to help." [Note. Another migrant replies. Note Ends.] "It's not help."

The Turkish Coast Guard rescue report was analysed in detail and - in addition to the information already shared above - provided the following information:

- The group rescued from two life rafts in the rescue video is beyond doubt identical to the group depicted in the videos provided by the NGO and filmed by the migrants at sea;

- According to the information provided, the rescued group consisted of 44 people altogether: 35 from [REDACTED] [REDACTED].

Personal data

3x Reporting Tools

The Fundamental Rights Office identified the potentially matching [REDACTED] in JORA reported by the Greek authorities from [REDACTED] Samos as [REDACTED]. According to the incident summary:

- On 01/05/2025, [REDACTED], a rubber boat with approximately forty-five migrants on board was early detected by Hellenic Coast Guard CPB [REDACTED] at the sea area [REDACTED]. After detection [REDACTED] Piraeus informed [REDACTED] Ankara and a TCG patrol boat arrived at the area and took over responsibility of the incident.

Sensitive operational info

Operational area

2x Reporting tools

Records in OPERA database confirm that CPB [REDACTED], similar to the one visible in the migrants' videos.

2x Technical Equipment

The Office further reviewed available Frontex operational reporting. The presentation delivered at the [REDACTED] (02/05/2025) meeting at [REDACTED] Piraeus, includes the following information:

- Prevention of departure incident identical to JORA [REDACTED]: *On 01/05/2025, [REDACTED], a rubber boat with approximately forty-five migrants on board was early detected by HCG CPB [REDACTED] at the sea area [REDACTED]. After detection [REDACTED] Piraeus informed [REDACTED] Ankara and a TCG patrol boat arrived at the area and took over responsibility of the incident.*
- The deployments to Samos on 01/05/2025 identify the following assets:
 - [REDACTED] co-financed by Frontex;
 - [REDACTED]
 - [REDACTED]
- The Office reviewed the mission reports of all three assets but neither reported any incident on the day.

4x technical equipment

Operational area

On 30/05/2025 the Fundamental Rights Office interviewed a migrant that allegedly was pushed back to Türkiye on 01/05/2025 as described in this SIR. [REDACTED] initially provided by the NGO.) From the interview the Fundamental Rights Office gathered the following information:

Reporting Tools

- Migrants departed from Türkiye, in a jet/fast rubber boat, not inflatable, with two engines.
- There were 43 people on board - 25 [REDACTED]. There were around 16 children on the boat.
- The boat started the journey from Izmir area. Sailed for almost 2.5 hours at sea. At around [REDACTED] Samos, the engine ran out of fuel, and the water was inside the boat (20-30 cm) so the boat could not proceed.
- It was the 01/05/2025 and the Greek [Coast Guard] found them around [REDACTED].
- The boat [the migrant] saw a big vessel approaching, and noticed that some of the five crew members had weapons. Those people brought the migrant boat to their vessel. [The Greeks] had a pestle (like long stick) and a knife, they also had something like a hook on the pestle [mooring stick]. They had a belt with extra bullets.
- The migrant understood the crew were speaking in Greek, when they transferred the migrants onto their boat they were saying "dio dio" (two persons/in pairs). When talking to each other they were saying "edaxi", which in Greek means "ok" or "yes".
- After migrants were taken aboard the Greek boat, they destroyed the migrant boat with the knife. They took all the migrants' belongings - telephones, gold the women had on them, money.
- The Greek vessel sailed for two hours and eventually brought the migrants close to a place in Türkiye called "Didim". The migrant said that it was around 14:00 or 15:00 when they arrived there. It was raining.
- The crew prepared inflatable round boats they had with them. The height from their vessel to the inflatable boats was about 3-4 meters - they started kicking everybody, including women and elderly people, to throw them inside the round boats, even a 2-month-old baby.
- The Turkish Coast Guard vessel rescued the migrants between 14:00 and 15:00.

Personal data

2x sensitive operational info

On 20/06/2025, as part of its enquiry, the Fundamental Rights Office requested from the Greek authorities the following information:

- Is JORA [REDACTED] linked with the events described in the present SIR? What other interceptions happened on the day in the vicinity of Samos?
- Was the Hellenic Coast Guard [REDACTED] (co-financed) that was deployed in the area of the incident on 01/05/2025 involved with this incident?
- Which assets were operating in the location of detection and rescue?
- Details about initial detection of the migrant boat [REDACTED]
- Uniforms and equipment of the crew of [REDACTED]
- Confiscation of migrants' belongings (including phones, money, jewellery/gold) once they are on board of the HCG's vessel and the legal basis for that.
- Destruction of the original migrant boat once they were on board HCG vessel. What is the legal basis?
- Has any investigation been carried out?

Reporting
Tools3x Technical
Equipment

On 31/07/2025, the Greek authorities responded providing the following information:

- Only one incident was reported around Samos and it has been included in JORA.
- Following a comparison of the contents of the reports available regarding the incident in question, the allegations are not substantiated.
- Regarding the activity of Hellenic Coast Guard [REDACTED] the mission report is available to Frontex.
- Information about the Hellenic Coast Guard [REDACTED] cannot be provided because it was operating in the context of the "national effort."
- Allegations of ill-treatment do not correspond to the operational procedures of the Hellenic Coast Guard nor its commitment to international maritime safety standards.
- The authorities cannot comment on allegations present in audio-visual material of dubious origin that was not shared with them.
- The matter has been addressed to the Hellenic Coast Guard Disciplinary Unit for their assessment and possible follow-up actions.

2x Technical
Equipment

Assessment

This section assesses the information collected against the allegations made. The material gathered points towards three potential violations of fundamental rights:

- **Prohibition of collective expulsion:** migrants were allegedly intercepted by the Hellenic Coast Guard at sea (about [REDACTED] from Samos' shores) transported to and abandoned in Turkish territorial waters.
- **Right to life:** migrants were in distress conditions and were not rescued by the Hellenic Coast Guard; they were allegedly abandoned at sea in drifting life rafts.
- **Prohibition of inhuman or degrading treatment:** while being pushed back, migrants were allegedly deprived of their personal belongings and violently forced from the Hellenic Coast Guard vessel into a life raft by members of its crew.

3x operational
area

ALLEGED COLLECTIVE EXPULSION

Collective expulsion would be established if it can be shown that the migrants were initially present in the Greek territory, under effective control of the authorities, and were removed without having their individual circumstances assessed and without a return decision (M.A. and Z.R. v Cyprus 2024).

In relation to the presence of the migrants in the Greek territory, the following considerations can be set out:

- The NGO claims that the migrants were close to Samos when their engine malfunctioned and that they got in direct contact with the NGO while being in Greek waters. The NGO supports this statement with videos, pictures and geo-localizations sent live by some of the migrants. The live positions shared point all to the [REDACTED] of Samos, at about [REDACTED] from the island's shores.
- Position near Samos was confirmed by the interviewed migrant who stated that around [REDACTED] when the boat was close to Samos shores, the engine was out of benzine, and the water was inside the boat (20/30 cm) so the boat could not proceed.
- Videos show a Greek Coast Guard vessel in immediate vicinity of the migrant boat.

sensitive operational information

- Greek authorities indirectly disputed the claim that the migrants had been in Greece, when they reported the sighting of the migrants in Turkish territorial waters near Didim. The Office dismisses this statement as the Greek authorities did not reply to the question regarding the position of the migrant boat at the time of the interception [REDACTED] of Samos) and the presence of an Hellenic CG vessel in the immediate vicinity of the boat. operational area
- The Office additionally notes that there is a pattern in past SIRs: the Hellenic Coast Guard reports early detection of migrants in Turkish territorial waters, labelling it as [REDACTED] who were in fact, in all likelihood, been removed from Greek waters by the same Hellenic Coast Guard “detecting” assets. reporting tools

Therefore, the Office concludes that the migrants have, on 01/05/2025, entered Greek territorial waters, likely in the area [REDACTED] of Samos, as evidenced by the presence of the Greek coast guard vessel in videos they made, as well as statements by the migrants. 2x operational area

Concerning the corroboration or rebuttal of the migrants’ identities and their subsequent rescue from Turkish territory, the following points should be noted: the Office compared two sets of video and photo material - by the migrants themselves, made at sea [REDACTED] of Samos prior to and during their interception at approximately 10:00, and by Turkish Coast Guard during the migrants’ rescue near Didim on 01/05/2025, at 14:00.

- The videos clearly identify several same individuals in the two sets of media - through physical features, and clothes (e.g. small child wearing the same yellow jacket; adult woman all dressed in beige, adult man with checkered shirt and dark blue/black jacket).
- The nationalities and numbers of the migrants in the boat/life rafts, as listed by the rescuing Turkish authorities, correspond (to an extent) with the overview provided by the interviewed migrant. 2x personal data
- Slight disparities between the interviewee (mentioned presence of [REDACTED]) and the Turkish Coast Guard records [REDACTED] or regarding the number of minors on board, can be explained by the interviewee’s position in the boat, or overall lack of attention to such detail. In the view of the Office such imprecision is to be expected considering the circumstances of the events on the day and does not undermine the overall credibility of the migrants’ statements.

The Office concludes that based on this evidence, it is confirmed that the same group of migrants is present in both sets of visual evidence - taken first in the Greek territory at sea, likely [REDACTED] of Samos, and later the same day in Turkish territory, where it was rescued by the Turkish Coast Guard from two life rafts. operational area

With regard to effective control and removal from territory, without any assessment of individual circumstances, the following points should be noted as corroborating the initial report:

- NGO, the migrants, the interviewed migrant and the Turkish Coast Guard affirm that the migrants have been pushed back by the Hellenic Coast Guard on the same day.
- The interviewed migrant and the NGO both described the migrants being loaded on a boat that drove them for two hours - a timeline which corresponds with the distance between the likely interception location and the location of rescue.
- The type and affiliation of the vessel in the migrants-made video is indisputable - it is a [REDACTED] Hellenic Coast Guard coastal patrol boat - although its exact identity cannot be corroborated.
- The Office observes that the intervening vessel in the videos is the same type as the vessel [REDACTED], which was present near Didim according to the Greek reporting. 2x Technical Equipment
- No alternative viable explanation exists for the migrants appearing far from their initial interception, in life rafts, other than that they had been brought there by the authority seen controlling them in the videos made by the migrants - the Hellenic Coast Guard.
- No sources described any relevant individualized assessment of the migrants’ circumstances.
- The Greek authorities indirectly denied the migrants ever being in the Greek territory but failed to provide any other reasonable explanation or information in relation to the described facts. Operational area x3

As such the Fundamental Rights Office concludes that the same group of migrants had been in the morning of 01/05/2025 intercepted by a Hellenic Coast Guard CPB [REDACTED] Samos [REDACTED] while being in a distress situation. After which all the migrants were taken aboard a HCG asset, transported by it to the sea [REDACTED] Samos, where the crew of the HCG asset opened two life rafts, loaded the migrants and left, abandoning them at sea inside the Turkish

territorial waters. The Office therefore believes that this chain of events amounts to collective expulsion of the 43 migrants.

The Office underscores that the practice of collective expulsion or pushback at sea has been documented in previous SIRs, for example 10463/2024, 11676/2024, 12280/2024 as well as in numerous reports by NGOs, international organizations and the Greek Ombudsman. The European Court of Human Rights (ECtHR) found in both the case of G.R.J. v Greece and in the case of A.R.E. v Greece, that the country carried out a systematic practice of pushbacks to Türkiye respectively from the Greek islands and from the Evros region.

ALLEGED VIOLATION OF THE RIGHT TO LIFE

Under both the European Convention on Human Rights (ECHR) and the EU Charter of Fundamental Rights, States are not only required to refrain from arbitrarily taking life but also have positive obligations to take preventive operational measures to protect individuals when there is a real and immediate risk to their lives.

This duty applies when authorities know or should have known of such a risk, and it is particularly stringent in contexts involving vulnerable people or situations under the State control, such as rescue operations at sea. If such positive obligations are not fulfilled, the State may incur responsibility even in the absence of direct intent to cause death.

As established above, the Fundamental Rights Office considers it confirmed that the Hellenic Coast Guard did not take the migrants aboard the Greek vessel with the aim of conducting a rescue operation, rather with the intention to bring them back to Türkiye. In addition, the Hellenic Coast Guard should have known without doubt that the migrant boat was in a life-threatening situation: the dinghy was stopped, the engine was not working, the boat was overcrowded and full of water, the presence of vulnerable persons (namely small children) was evident.

Yet, instead of bringing the migrants to a place of safety, giving them access to all subsequent procedures that would have allowed the persons to get proper assistance and to have their individual situation assessed, the Hellenic Coast Guard abandoned them at sea in Turkish waters in two drifting life rafts, exposing - again - their lives to risk.

The conditions of the dinghy have been clearly documented in the videos shared with the Office and confirmed by the audios translated with the support of Frontex [REDACTED] in addition to the testimony of the interviewed migrant. The use of life rafts has been also documented on the rescue video provided by the Turkish Coast Guard and confirmed by the accounts of the migrants.

Human
Resources

In conclusion, the Office believes that the omission to rescue the 43 migrants, in addition to the active action of putting them in an additional potential life-threatening situation (abandoning them at sea on unpowered rafts without possibility to navigate to safety and without possibility to contact for help), amount to a breach of the right to life as enshrined in Article 2 of both the EU Charter and the European Convention on Human Rights.

The Fundamental Rights Office is deeply concerned with the frequent reports, including the SIRs, alleging involvement of the Hellenic Coast Guard in such practices and observes the existence of a clear pattern in this regard.

ALLEGED INHUMAN AND DEGRADING TREATMENT

Two allegations in the present case have been made regarding the ill-treatment of the migrants. The first allegation concerns confiscation of all belongings - including money, phones and jewellery, and the second concerns alleged violent throwing of migrants, including children, from a height of 3-4 meters into inflated life rafts.

In the present case, these allegations came from a single testimony of the interviewed migrant, and the Office was unable to corroborate or disprove them against available information or additional evidence. Allegations of inhuman and degrading treatment, as described by the migrant, are therefore considered unclear.

Nevertheless, the Office recalls that allegations related to confiscation of belongings and mistreatment of migrants similar to what was described by the interviewed migrant are consistent with a *modus operandi* that has been previously recorded in several other SIRs.

NATIONAL AUTHORITIES' COOPERATION WITH THE SIR PROCEDURE AND EFFECTIVE INVESTIGATION

The Fundamental Rights Office recalls that the Frontex Management Board requested national authorities to “cooperate in good faith and provide a timely and detailed reply to enquiries including all information, data, records and evidence relevant to a case under investigation” and to “reply, whenever feasible, to each question listed in the enquiry separately to provide all information deemed relevant by the Fundamental Rights Office for its comprehensive investigation of the incident” (100th MB Meeting, 12-13/06/2024). In the present case, the Office considers the information provided by the authorities to its enquiry generic in nature. Considering the evidence obtained, the Office considers the burden of proof to be shifted, and that the authorities would have needed to show that the facts did not happen as alleged - ECtHR Hamoudi v. Frontex - 2025.

In their response to the Fundamental Rights Office’s enquiry, the Greek authorities informed that the case material had been forwarded to the Hellenic Coast Guard Disciplinary Unit for their assessment and possible follow-up. The Fundamental Rights Office re-emphasises, as in the case of numerous previous incidents, that the Greek authorities must investigate the allegations raised in the present SIR in an efficient and transparent manner, and would appreciate receiving comprehensive information on the outcome of the investigation underway. Failure to fully investigate by Greece has been also stated by the European Court of Human Rights in, for example, B.Y. v. Greece (2023).

Final conclusion - Proposals - Lessons learned

Based on the available evidence, comprising a report by an NGO that was in contact with the migrants on the day of the incident, entries in the Frontex databases, reporting by the Turkish Coast Guard, exchanges with the Greek authorities, and an interview with one of the migrants - the Fundamental Rights Office concludes that:

- The same group of migrants was, on the morning of 01/05/2025, intercepted by a Hellenic Coast Guard CPB [REDACTED] of Samos. All the migrants were subsequently taken aboard a Hellenic Coast Guard asset not to be brought to a place of safety but rather to be brought back to Turkish waters [REDACTED] Samos. Here the Hellenic crew deployed two life rafts, loaded the migrants inside them and departed, leaving them alone and adrift.
- This established sequence of events amounts to a violation of the prohibition of collective expulsion and a violation of the right to life of the 43 migrants.
- The allegations of inhuman and degrading treatment in this case - namely the alleged confiscation of property and the violent throwing of migrants from a height into the life rafts - remain unclear. However, the Office notes that the *modus operandi* described by the migrant is consistent with practices associated with the Hellenic Coast Guard.

The Office observes that the troubling practice described in the present case is not an isolated incident but has been documented in previous SIRs. It is furthermore concerned by the reporting of the Greek authorities, which reported the incident as a [REDACTED], disregarding the documented presence of the migrants on Greek territory.

Against this backdrop, the Fundamental Rights Office makes the following recommendations:

To Frontex:

1. To increase its presence and play a more active role in activities including the detection and interception of migrant vessels, as well as search and rescue operations at sea, in the Frontex operational areas where migratory pressure is high and alleged violations of fundamental rights have been reported.

To Greek authorities:

1. To ensure that no unlawful collective expulsion takes place, and to ensure access to a place of safety in order to protect the life of persons and to avoid risk of refoulement.
2. To ensure that individual assessments are carried out to determine whether migrants are in need of protection and/or of special attention based on their potential or evident vulnerabilities.
3. To review and assess systems and rules governing operational reporting and record-keeping, as well as the way they are being implemented in order to avoid reporting gaps; to use EUROSUR (former JORA) for all detections/interceptions.
4. To provide detailed communication and reply fully to the questions of the Fundamental Rights Office, particularly those relating to cases analysed in the framework of SIR.

5. To adopt a firm policy and enforce robust sanctions against Hellenic officials found involved, whether directly or indirectly, in fundamental rights violations at all levels of the hierarchy.